

PROPOSED
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1176
(Reference to Senate engrossed bill)

1 Strike everything after the enacting clause and insert:

2 "Section 1. Title 41, chapter 7, article 8.1, Arizona Revised
3 Statutes, is amended by adding section 41-1234.02, to read:

4 41-1234.02. Lobbying authorization; cities; towns; counties;
5 prohibition

6 A. NOTWITHSTANDING ANY OTHER LAW, A PERSON MAY NOT LOBBY THE
7 LEGISLATURE ON BEHALF OF A CITY, TOWN OR COUNTY UNLESS THE CITY, TOWN OR
8 COUNTY'S GOVERNING BODY HAS ADOPTED A FORMAL POSITION ON THE LEGISLATIVE
9 MATTER AT ISSUE THAT MEETS ALL OF THE FOLLOWING REQUIREMENTS:

10 1. IS APPROVED BY A MAJORITY VOTE OF THE GOVERNING BODY.

11 2. IS ADOPTED BEFORE ANY LOBBYING ACTIVITY OCCURS.

12 3. CLEARLY STATES THE POSITION THAT IS TAKEN ON THE SPECIFIC
13 LEGISLATIVE MATTER, INCLUDING WHETHER THE CITY, TOWN OR COUNTY SUPPORTS,
14 OPPOSES OR IS NEUTRAL ON THE PROPOSED LEGISLATION.

15 4. IS DOCUMENTED IN THE OFFICIAL MINUTES OR OTHER PUBLIC RECORD OF
16 THE CITY, TOWN OR COUNTY.

17 B. THIS SECTION APPLIES TO A PERSON WHO IS REQUIRED TO BE
18 REGISTERED AS A DESIGNATED PUBLIC LOBBYIST OR AUTHORIZED PUBLIC LOBBYIST
19 FOR A CITY, TOWN OR COUNTY.

20 C. THIS SECTION DOES NOT PROHIBIT A PERSON FROM THE FOLLOWING:

21 1. PROVIDING NEUTRAL AND FACTUAL INFORMATION IN RESPONSE TO A
22 REQUEST FROM A MEMBER OF THE LEGISLATURE OR OTHERWISE COMMUNICATING WITH
23 THE LEGISLATURE AS PRESCRIBED BY SECTION 41-1232.04.

24 2. ADVOCATING A FORMAL POSITION AS EXPRESSLY AUTHORIZED BY A
25 LEGISLATIVE AGENDA OR POLICY STATEMENT ADOPTED BY THE GOVERNING BODY OF
26 THE CITY, TOWN OR COUNTY.

27 D. A PERSON WHO VIOLATES THIS SECTION MAY NOT REPRESENT THAT THE
28 PERSON IS ACTING ON BEHALF OF THE CITY, TOWN OR COUNTY."

29 Amend title to conform

DAVID LIVINGSTON